

March 23, 2026
Dept. 9
Probate Tentative Rulings

11.	24PR0301	MATTER OF MIESCH vs. O'BRIEN
Petition to Compel Accounting		

Wreath Miesch (“Wreath”) has two daughters – Petitioner, and Colleen O’Brien (“Respondent”).

Petitioner, Regina Miesch, petitions the Court for Orders under Probate Code §§ 4521, 4541, and 4545, for Court enforcement of duties of an attorney-in-fact under a durable power of attorney (“POA”). Respondent serves as the agent under the POA.

Petitioner has requested an Accounting from the Respondent, which has not been produced. Petitioner is concerned about work being done on Wreath’s house, totaling over \$200,000, and other money allegedly being collected by the Respondent.

Petitioner requests an Order: compelling the POA submit to an accounting respecting Wreath’s property, over which POA has had control from June 5, 2020, to the present; declaring that Respondent’s authority under the POA is revoked; appointing Petitioner as POA; compelling Respondent to provide restitution to Wreath; and an award of attorney’s fees to Petitioner.

The parties entered into a prior Stipulation on May 1, 2024, which was adopted by Judge Balfour on May 2, 2024.

Wreath Miesch established the Wreath Miesch Living Trust (“Trust”) on June 12, 2023. Petitioner is a named beneficiary. On or around September 9, 2024, Respondent became the successor Trustee of the Trust based upon the incapacity of Wreath. The Trust is irrevocable.

Petitioner is seeking the removal of Respondent as Trustee, based upon repairs and remodeling made on Wreath’s Lodi home, which were allegedly performed by Respondent and her partner. Petitioner alleges breach of Trust, based on allegations of Wreath’s treatment by Respondent. Petitioners allege financial elder abuse on the same grounds.

Petitioner requests an Order: removing Respondent as Trustee; for an in-home evaluation of Wreath; finding that Respondent and Mike Ramos be found to have committed elder financial abuse and ordered to refund Wreath according to proof; that Wreath is entitled to an award of exemplary or punitive damages; and that Petitioner be awarded attorney’s fees and costs.

Both Petitions were served by mail on November 7, 2024, on Respondent and her counsel. However, the Notice of Petition for Removal, etc. also lists service on Mike Ramos.

At the hearing held August 25, 2025, the parties indicated that they were engaged in meet and confer efforts and requested a continuance.

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A report by Elder Care Management, filed by Petitioner, evaluating the suitability of Wreath' current arrangements is on file with the Court. This report contains conclusions and recommendations that are relevant to the health and welfare of Wreath but are not directly at issue as to these Petitions related to financial management and accounting.

At the prior hearing the Court continued the matter to hear arguments and make a ruling on the issue of interpretation of the Stipulation and other issues. The Court set a briefing schedule. Since the previous hearing there have been several new filings.

First, Respondent filed a Request for Judicial Notice of pleadings filed in Case No. 24CV0650:

1. Request for Elder or Dependent Adult Restraining Order Allowing Contact alleging O'Brien is preventing Miesch's contact with Wreath Miesch
2. Request for Elder or Dependent Adult Abuse Restraining Order alleging Miesch is bullying and stealing funds from Wreath Miesch
3. Response to Request for Elder or Dependent Adult Abuse Restraining Order
4. Stipulation re Wreath Miesch Visitation and Finances

Second, Miesch filed her Reply Brief re: Legal Effect of Prior Stipulation on Pending Petitions filed in Case No. 24CV0650, dated February 25, 2026. This brief argues that:

- The Stipulation allows visitation and does not waive or release claims;
- Mike Ramos is not party to the Stipulation and is referenced only as a service provider whose cost of services are at issue, and he may not use the Stipulation to shield himself from the requirement of disgorgement of unlicensed labor charges
- The Stipulation governs visitation and does not constitute a waiver or release of disputed renovation costs, violations of fiduciary duty breach of trust or elder abuse.

Miesch requests the Court to find:

1. To find that the Stipulation does not apply to Mike Ramos
2. To find that the Stipulation does not prevent the litigation of pending petitions for accounting, removal of trustee, breach of trust, and financial elder abuse; and
3. To award attorney's fees and costs to Miesch

Third, O'Brien filed her Reply Brief re: Legal Effect of Prior Stipulation on Pending Petitions filed in Case No. 24CV0650, dated March 12, 2026. O'Brien makes several objections to statements in Meisch's brief as lacking foundation, inadmissible hearsay and opinion statements regarding Mike Ramos' service fees, the effect on real property valuation of unlicensed repair

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work, and the statement that Ramos is an unlicensed flooring contractor. Further, O'Brien argues:

1. Miesch mischaracterizes O'Brien's legal argument. She does not assert the application of Civil Code 1542 waiver provisions. Rather, she argues that the conclusion of the civil litigation with a stipulation that includes payments for renovations on Wreath Miesch's real property collaterally estops the parties from further litigating this issue.
2. O'Brien does not assert that the Stipulation is governed by Code of Civil Procedure § 664.6 but does manifest the parties' intentions to be collaterally bound by its terms.
3. The Stipulation does apply to Mike Ramos because its reference to "all labor costs" includes those of Mike Ramos.
4. The Stipulation is a "final judgment" that is not premised on the underlying dismissal of the prior civil proceedings.
5. The Stipulation does not violate Business and Professions Cde § 7031 or Civil Code § 3513.

O'Brien requests the Court to find as follows:

Regina Miesch and Colleen O'Brien intended to be collaterally bound by the Stipulated Judgment and cannot now assert claims regarding the Settlor's approval of the payment of rent from the Lodi Property to Colleen O'Brien as reimbursement for the labor costs at the Lodi Property. Additionally, by attempting to nullify portions of the Stipulated Judgment through the Petition, the Court should find that Regina Miesch has triggered the fee shifting provision of the Stipulated Judgment and the prevailing party on the Petition is entitled to an award of attorney's fees and costs.

TENTATIVE RULING #11: APPEARANCES ARE REQUIRED AT 8:30 A.M. ON MONDAY, MARCH 23, 2026, IN DEPARTMENT NINE.